

RESTORING BALANCE: AN ACADEMIC REVIEW OF ARGUMENTS FOR AND AGAINST THE RESTRICTION OF PRESIDENTIAL WAR POWERS

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Abstract: This essay explores arguments for and against restraining various presidential war powers in order to contend that this topic would serve as an excellent debate topic for the college policy debate community. Specifically, the essay reviews major options for policy change to restrain presidential war powers in the areas of unmanned aerial vehicles (UAVs), Offensive Cyber Operations (OCOs), indefinite detention, unrestrained wireless surveillance, covert operations, and United Nations and NATO military operations. We outline the advantages and disadvantages of each policy option and provide examples of the literature base for those debates. Lastly, we outline a number of reasons why debates about presidential war powers are important.

“...comprehensive and undefined presidential powers hold both practical advantages and grave dangers for the country” – Supreme Court Justice Robert Jackson, 1952.

On March 7, Senator Rand Paul (R-Ky.) began a 13-hour long filibuster of President Obama's nomination of John Brennan as head of the CIA. The purpose of the filibuster was to "dra[w] attention to deep concern on both sides of the aisle about the administration's use of unmanned aerial vehicles (UAVs) in its fight against terrorists and whether the government would ever use them in the United States" (O'Keefe & Blake, 2013, para. 2). While the filibuster eventually ended and Brennan was successfully nominated, Paul's efforts received somewhat surprising bipartisan praise, especially from conservative and libertarian critics and civil-liberties-minded liberals and progressives. For example, Senator Jeff Merkley (D-OR), praised Paul for his "fight for an important ideal" and ACLU senior legislative counsel Christopher Anders was hopeful that the filibuster was "part of Congress reasserting its constitutional role of checks and balances between the president and the Congress. For too long on national security issues we've had congress out to lunch" (Stevenson & Parker, 2013, para. 3-6).

Anders highlights the central controversy surrounding the Obama administration's use of UAVs and definition of "enemy combatants": the ever expanding scope of presidential war powers. While Anders holds out hope that this act will restore the constitutional checks and balances between the legislative and executive branches over national security and war powers, several trends suggest that this rare congressional criticism against the deployment of executive authority will not be sustained. For instance, senior GOP leaders such as Senators John McCain (R-AZ) and Lindsey Graham (R-SC) quickly rebuked Paul, arguing that expansive presidential powers are necessary for the president to effectively fight the War on Terror (Stevenson & Parker, 2013). This response is not surprising, as it continues a long trend of Congress abdicating its Constitutional responsibility in

restraining excessive presidential power (Irons, 2005). In the last four decades, over 100 military actions have been taken by the president without significant congressional opposition, which led noted historian Arthur Schlesinger Jr. to contend that the growth in presidential national security and war powers occurred “as much a matter of congressional acquiescence as of presidential usurpation” (as cited in Healy, 2009, p. 109).

As former U.S. Senator and Secretary of the Navy Jim Webb (2013) contends, congressional abdication of its role in balancing ever expanding presidential powers has grown worse overtime and is in clear opposition to the Framers’ intent:

In matters of foreign policy, Congress...was designed as a hedge against the abuses exhibited by overeager European monarchs who for centuries had whimsically entangled their countries in misguided adventures.... Congress was given the power to declare war and appropriate funds, thus eliminating any resemblance to European-style monarchies when it came to the presidential war power.... Practical circumstances have changed, but basic philosophical principles should not. We reluctantly became a global military power in the aftermath of World War II....In the ensuing decades, the changing nature of modern warfare, the growth of the military-industrial complex and national-security policies in the wake of the Cold War all have contributed to a mammoth defense structure and an atrophied role for Congress that would not have been recognizable when the Constitution was written. And there is little doubt that Dwight D. Eisenhower...who...as president warned ominously of the growth of...the “military-industrial complex,” is now spinning in his tomb. Perhaps the greatest changes in our defense posture and in the ever-decreasing role of Congress

occurred in the years following the terrorist attacks... of September 11, 2001. Powers quickly shifted to the presidency as the call went up for centralized decision making in a traumatized nation where quick, decisive action was considered necessary. (para. 1-5)

Besides this general relinquishment of its constitutional responsibilities, Congress tends to hold a “situational” view of constitutionalism, which supports and expands executive powers when one’s party resides in the White House or in times of emergency and crisis (Healy, 2009, p. 191). Until the 1960s, there was general consensus between Democrats and Republicans in support of expansive war power authority. However, as the Vietnam War made military intervention and executive authority highly unpopular with the public, congressional support for the use and expansion of war powers began to oscillate depending on election year politics and which party controlled the White House (Piper, 1994, p. 588). Thus, while Paul’s stand against the executive’s expansion of war powers was newsworthy, it is rather unlikely to radically alter the long-term growth in presidential powers.

Due to its controversial and static policy status, we believe that the topic of restricting presidential war powers would serve as an excellent debate topic. In this essay, we provide an academic review of arguments both for and against the restriction of presidential war powers to demonstrate the balance in arguments on both sides of the topic and to provide examples of many of these arguments. Our aim is not to provide an exhaustive review of the entire controversy surrounding presidential war powers; instead, we provide a basic survey of the core arguments that can be discussed in a debate about restraining presidential war powers. While the primary audience for this essay is the college policy debate community (those belonging to the Cross

Examination Debate Association (CEDA) and National Debate Tournament (NDT) organizations), this essay provides a review of central arguments and issues about post-9/11 presidential war powers that might assist anyone not involved in collegiate debate with interest in this controversy.

The essay will begin by reviewing the current state of presidential war powers and the stakes of the controversy. Then, we review the mainstream options of policy change that debaters could affirm. Next, we examine the core disadvantages and counterproposals to those policy changes, which serve as the negative's primary set of arguments on the topic. Finally, we outline a number of unique educational opportunities offered by debates on this controversy.

The Current State of Presidential War Powers

The controversial status of current presidential war powers dominates the news today. For instance, libertarian and progressive critics have attacked Obama's unchecked use of Unmanned Aerial Vehicle (UAV) drone attacks, expansion of terrorist targeting policy, and maintenance of the Guantanamo Bay detention center. Despite hopes that the Obama administration would reverse a number of the Bush Administration's War on Terror policies that massively increased the scope of presidential war authority without congressional oversight, Obama has merely tinkered with some details of those policies, while increasing the use of others. As Jack Goldsmith (2010), Henry L. Shattuck Professor of Law at Harvard and former U.S. Assistant Attorney General under the Bush Administration, notes,

President Obama has continued the counterterrorism policies of his predecessor. Obama has cut back the Bush program on interrogation and black sites, though not as much as most

people think. He has supported tiny congressional modifications to military commissions, but he has persisted in their use. He has controversially insisted on a civilian trial for Khalid Shaikh Mohammed, but this is less of a change than critics suggest, as the Bush administration often used civilian trials for terrorists....Obama has replicated Bush's legal arguments concerning detention, habeas corpus, and state secrets. And he has embraced, and indeed ramped up, the Bush approach to targeted killing and rendition. (para. 49)

It remains highly unlikely that any meaningful action will be taken in the status quo to reduce presidential powers. In Congress, there is widespread fear that any opposition to the president will be highly unpopular with the public and that Congress will be held accountable for any future security problems or failures. For example, during an international crisis, Congress is usually reactive to the President's initiatives, as the President has a great deal of flexibility in the immediate aftermath of a crisis. Once U.S. forces have engaged a situation, any congressional opposition to presidential war powers is spun by the opposition party as unpatriotic and harmful to the troops (Schroeder, 2005). As a result, even when highly controversial policies like Guantanamo Bay, Abu Ghraib, and "black" detention sites were discussed in Congress, little to no meaningful action was taken in response (Schroeder, 2005).

Historically, the courts are reluctant to rule against the president (Mahler, 2008; Schroder, 2005). Generally, the Court either defers to the Executive on foreign policy and military operations or it considers these matters political questions that should be resolved by Congress and not the Court (Mahler, 2008). However, as the Bush Administration became "unusually aggressive in asserting executive authority stemming from 9/11,"

in ways that stripped basic habeas corpus rights from Guantanamo Bay detainees, the Court ruled against the Administration in a number of cases (Mahler, 2008, para. 14). In the 2004 *Hamdi v. Rumsfeld* and *Rasul v. Bush* decisions, the Court declared that all detainees had a right to some type of due process. However, the Court did not specify what type of due process detainees were allowed (Mahler, 2008). In 2006, the Court ruled in *Hamden v. Rumsfeld* that the creation of military commissions for detainees violated principles found within the Military Code of Justice and the Geneva Convention. Additionally, the Court concluded that military commissions had to receive congressional approval (Mahler, 2008). In response to the *Hamden* decision, Congress passed the Military Commissions Act of 2006 that created military commissions that mirrored those created by the executive. Moreover, the Act restricted detainee's rights to file habeas corpus petitions. In response to challenges to the Act, the Court's 2008 *Boumediene v. Bush* decision held that Congress could not strip detainees of habeas corpus rights (CCR, n.d.). While these later decisions were important and limited executive war powers to some degree, they narrowly examined the issue of detainees and military commissions. Additionally, the rulings were a result of excessive and unfounded executive war authority claims rather than a change in the Court's willingness to intervene in war power disputes (Mahler, 2008). As a result, the Court's decisions have had limited impact on the overall balance of power regarding war powers (Barron, 2008).

And this is part of a long historical trend. As Peter Coffman (1995), an attorney for the U.S. Department of Justice, concludes, the debate between proponents and opponents of robust and unfettered presidential powers has not been resolved by the political branches and will

remain a continued source of executive-congressional tension. As such, there is a clear, robust, and distinct controversy that has a relatively stable status in terms of overall executive war power authority.

The Stakes of the Controversy

Fundamentally, debates on war power authority raise the following question: should we have a strong executive that can make foreign policy and war decisions in a largely unhindered and timely manner or should there be stronger legislative and judicial checks on this authority? The answer to this question is complicated because, as Curtis Bradley, professor at the University of Virginia School of Law, and Jack L. Goldsmith (2005), professor at Harvard Law School, both former staff in the Executive Branch, explain, the debate about the scope of presidential authority remains highly controversial because it “implicates some of the most difficult, unresolved, and contested issues in constitutional law” (p. 251). More specifically, as Seth Weinberger (2009), Assistant Professor in the Department of Politics and Government at the University of Puget Sound, explains,

The question of allocating war powers between the president and Congress is a critical one. If too much power is concentrated in the hands of the executive, the country risks undermining basic constitutional protections of individual freedoms and eroding the democratic nature of the republic; if too much of a role is given to Congress, the country may not be able to effectively develop policies to protect itself. (p. 4)

Therefore, a debate about war powers is not simply about enabling or restraining the use of military power; instead, it raises a number of concerns about crisis decision-making, democratic governance, and individual liberty.

Because war power debates affect a number of contentious international, legal, and military issues, this controversy area accesses a wide range of literature. For example, there is a tremendous amount of legal and political science scholarship that examines issues of executive authority, executive-congressional balance of powers, and war powers, all of which are central issues featured within this topic. Moreover, a number of policy and research institutes frequently publish about the consequences of the application of military doctrines and the use of certain military technologies. Additionally, a host of cultural critics, philosophers, and political theorists have interrogated how modern war powers and technologies have fundamentally changed democratic culture and international relations and magnified ethnic, gender, racial, and sexual difference.

Beginning with executive actions taken during Thomas Jefferson's execution of the Barbary Wars, James Madison's action in the War of 1812, and Abraham Lincoln's policies during the Civil War, there has been a constant struggle between the executive and Congress over the appropriate balance between the two branches in foreign and war policy (Diller & Wirls, 1997). Following World War II, Congress largely acquiesced to the continued expansion of presidential power that led to the Korean and Vietnam wars. However, as a result of the Vietnam War, Congress enacted the War Powers Resolution (WPR) (HJ Res. 542, PL 93-148) in November 1973, overriding President Nixon's veto, in order to "reassert its constitutional prerogative to authorize all significant military engagements" (Diller & Wirls, 1997, p. 177). As the "centerpiece of Congress's effort to claim a role in foreign policy," the WPR,

requires the Executive to consult with Congress prior to the use of military force and to report to Congress within forty-eight hours of the start of

hostilities. More importantly, the WPR requires the Executive to terminate the use of force (1) after sixty days if Congress has not subsequently ratified that use of force, or (2) even earlier if Congress passes a resolution requiring termination. (Weiner, 2007, p. 868)

Yet, even this joint resolution was opposed by both conservatives and liberals. Liberal critics maintained that the WPR enhanced rather than restricted presidential power by giving the president sanction to use military power for almost any use for up to ninety days (Diller & Wirls, 1997). Conservatives argued that the WPR overly restricted presidential foreign policymaking, reducing necessary flexibility in a constantly changing strategic environment.

Even today, 40 years after its enactment, the WPR remains a source of persistent controversy over presidential authority, even though “Congress, nor the courts have been willing to trigger the War Powers Resolution mechanism” since its passage (Grimmet, 2012, p. i). As noted earlier, opposition to executive war power authority is situational, meaning that this opposition tends to be weak or virtually non-existent in times of crisis or highly partisan depending on which party controls the White House. In the most recent WPR-related controversy, the 2011 Libya military intervention, this situational dynamic was at play, even though the fundamental arguments raised about the WPR were identical to the ones made in 1973. For example, nine liberal Democrats and the majority of Republicans opposed Obama’s unilateral order to use U.S. military forces in a United Nations Security Council-authorized strike against Libya. These congressional members argued that Obama inappropriately defined the Libya situation as an “imminent threat” to the U.S. and he had to seek congressional approval for such an operation.

They also maintained that under this interpretation of the WPR, the President would have unlimited military authority to act for up to 90 days, an argument similar to the concern raised by liberals in the 1973 WPR debate (Savage, 2011). The Obama Administration claimed that because the operation was limited in scope and duration, he had authority to unilaterally act. Obama's interpretation was supported by several Democrats and even some Republicans, including Speaker of the House John Boehner and Sen. John McCain. The arguments made by Obama and his congressional supporters echoed the conservative WPR position that the executive should have unhindered flexibility to respond to international crises (Crabtree, 2011). Thus, the central concerns and controversy about executive war power authority and the role of constitutional checks and balance over these powers remain unresolved even after 40 years or more of debate about these issues.

Given that presidential war powers have gradually increased since the founding of the country, what is the danger of the contemporary expansion of authority since the September 11, 2001 terrorist attacks? At a broad level, the answer to this question is that what is at stake is the entire system of checks and balances between the three federal branches that serve as a check against tyranny, unlimited federal power, and imperial ambition (Wolfensberger, 2002). More specifically, in the War on Terror era, these unhindered powers are augmented by remote drone and cyber technologies that distance the public from military conflict in ways that threaten the nation's democratic design and risk a never ending state of warfare (von Hoffman, 2013).

Furthermore, the threat of preemptive strikes and perpetual warfare exists because, in a world without proper limits to war fighting capabilities, "there is no clear point when hostilities cease, no clear boundary to

the battlefield, no clear set of combatants" (Rudalevig, 2005, p. 272). While many journalists and political pundits denounced Bush's National Security Strategy (NSS) of 2002—the Bush Doctrine – as dangerous because it articulated a policy of preemption, David Mitchell (2009) and Gordon Mitchell (2004) note that the administration actually enunciated a policy of preventive intervention. Preemption and prevention, as noted by David Mitchell (2009), are significantly different because preemption is taken against an imminent threat. Conversely, prevention is use to stop a potential future threat. While preemption lays the foundation for a wide range of military interventions, the literature suggests that prevention is so open-ended that it would allow the president to justify almost any military intervention without congressional approval.

As a presidential candidate, Obama positioned his national security strategy as the opposite of the Bush administration. However, once in office, Obama crafted a NSS that is virtually identical to the Bush Doctrine, particularly in regards to the right to act unilaterally to promote democracy through force (Hirsch, 2010). According to Representative Dennis Kucinich (D-OH) (2011), the Obama administration has gone one step beyond a preventive war doctrine and has implemented a preemptive doctrine, which has substantial implications for executive-congressional balance of powers over war. Scholars contend that this type of doctrine could allow for limitless warfare and military intervention in global hotspots such as Iran, Syria, Yemen, Mali, Pakistan, North Korea, or China (Fein, 2012). Or worse, without proper congressional oversight, a president with unlimited justification to prevent future (and perhaps illusory) threats may engage in wag-the-dog diversionary conflicts (Healy, 2008). For these reasons, the constitutional and international stakes are exceeding high in war power

debates.

Review of the Mainstream Options for Policy Change

This section of the essay reviews the options for policy change most commonly discussed in the literature. To begin, the section examines the nature of the debate about judicial and statutory restrictions as a potential corrective for the problems posed by excessive presidential war powers. Next, the section introduces the specific areas for reform: UAV drone strikes, Offensive Cyber Operations, indefinite detention, wiretapping, covert operations, and use of forces to support United Nations/NATO operations. Each specific area explores the policy mechanisms for change and the advantages and disadvantages for each option. Lastly, the section surveys philosophical and critical scholarly inquiries that broadly intersect with the war powers debate.

Judicial/Statutory Restrictions as a Potential Corrective

The literature on reducing presidential war powers outlines two basic approaches to limiting the use of these powers: (1) create new limitations or restrictions on the president's war powers (or new judicial interpretations of existing statutes); and (2) use Congress's power of the purse to eliminate funding for unauthorized presidential military operations. Because eliminating funding for a military operation can only operate once war powers have been put into use and do not challenge the fundamental authority that allows such an operation, we focus on the first approach – creating new statutory or judicial limitations on presidential power. A number of statutory and judicial approaches are discussed in the scholarly literature on this topic.

There is a rather extensive debate in peer-reviewed journals about the necessity of judicial and structural

limits on executive war authority (e.g., Fleischman, 2010; Pearlstein, 2005). A debate focused on the mechanism of increasing statutory and judicial regulations on presidential war powers does not challenge the president's inherent authority to respond to national security matters. However, it does provoke an important discussion about how to appropriately share and regulate military and foreign affair duties between the branches. As Neil Kinkopf (2005) contends, the dispute involves two competing interpretations of the balance of powers between the branches: an "exclusivity model" in which each branch's powers are separate and distinct; and a "reciprocity model" in which power is shared by the branches. Proponents of restricting war powers would challenge the Bush and Obama Administrations' claims of exclusive executive power. As Kinkopf (2005) elaborates,

The [Bush Administration] Justice Department has taken the position that the President has "inherent constitutional authority" to engage in surveillance designed to protect national security. This much is, or should be, uncontroversial. It is widely accepted that the President holds a protective power to respond to emergencies that threaten national security. What is controversial is the claim that this power is exclusive and not subject to regulation or limitation. This assertion was the foundation of the Torture Memo and underlies the Justice Department's defense of the domestic surveillance program. The domestic surveillance program directly implicates the controversy over the nature of the President's inherent constitutional powers because it runs afoul of a specific statutory prohibition, the Foreign Intelligence Surveillance Act (FISA)....If the President's inherent authority to engage in national security surveillance is exclusive, in that it is not susceptible to statutory regulation,

then FISA is unconstitutional in requiring that such surveillance be conducted only pursuant to a warrant. If, on the other hand, the President's inherent power is not exclusive, Congress retains power to impose regulations that apply to the President's exercise of his authority. Here, Congress has authority to regulate the instrumentalities of interstate and foreign commerce, which paradigmatically include lines of communication such as cell phones, telephones, and email. (pp. 1171-1172)

While Article I, Section 8, Clause 11 of the U.S. Constitution (referred to as the War Powers Clause) provides Congress with the power to declare war and Article II, Section 2 establishes the broad parameters of presidential war powers, they are not defined with much specific detail. Specifically, the presidential war powers are described as, "The President shall be Commander in Chief of the Army and Navy of the United States, and of the Militia of the several States." Because of this imprecision, an evolving set of statutory and judicial restrictions define the contours and limits of presidential authority (Baron & Lederman, 2008; Kinkopf, 2005). Although a number of status quo judicial and statutory limitations on presidential war powers currently exist, these restrictions are ineffective due to political compromises made during their crafting. As Schroeder (2005) explains,

When Congress has the political will to take a more proactive approach to problems in the areas of foreign and military affairs, it often does not fare much better in establishing parity in any supposed partnership with the President. As already noted, legislation is the product of compromises, and Presidents almost always have supporters within the legislative chambers who will work with the President's forces to push for such compromises.

Occasionally, political stars may align to produce a genuinely reciprocal arrangement....Such moments, however, are extremely rare. Much more common are situations like enactment of the War Powers Resolution. Because presidential opposition prompted compromises, the Resolution did not accomplish its objective. (pp. 1329-1330)

For this reason, an academic debate about what *should* be the limits on presidential power rather than what *would* they likely be once they are challenged and compromised by partisan politics and political interest groups, is worthwhile, because these proactive approaches rarely are debated or actualized by Congress.

Approaches to Restrict the Use of War Powers

Restrictions on UAV drone strikes authority.

The use of UAV drone strikes is a highly controversial area that could produce excellent debates. As David Adler (2013), Director of the Andrus Center for Public Policy at Boise State University and Andrus Professor of Public Affairs, writes, “The ongoing controversies surrounding President Barack Obama’s use of drones to target ‘enemies’ of the United States raises anew the question of the president’s legal authority to conduct the war on terror” (para. 1). Moreover, Adler (2013) suggests, “[the UAV debate] has broad implications... for the constitutional allocation of war powers and the responsibilities of Congress and the president in the management and conduct of this, or any, war” (para. 2). These were among the reasons cited by presidential candidate Obama for the need to reform Bush’s counterterrorism practices. However, despite these promises, President Obama has expanded Bush’s War on Terror, especially the use of drones. The increased use of drone technology has led to a number of questions about the constitutional and legal basis for the Commander

in Chief to unilaterally kill suspected terrorists (Boyle, 2012). Overall, the president has been given this type of authority because Congress has abdicated its duty to check the executive branch and in some instances, as with authorization of the 2001 AUMF, have actually voted to expand the president's power. The problem is not the president, but Congress' unwillingness to constrain the office (Sanders, 2012).

Policy options to restrict UAV drone strikes authority.

Given this historical precedent, what can Congress do to limit the power of the presidency in regards to drone strikes? Scholars who advocate limiting war powers focus on overall drone policy or more narrowly on the targeting of American citizens. In both cases, the most preferred mechanism in the literature would be for Congress to pass a new AUMF. As Michael Crowley (2013) writes,

The legal basis for Obama's targeted-killing operations ... is the 2001 Authorization for Use of Military Force.... Now members of Congress and legal scholars are asking whether it makes sense for U.S. counterterrorism policy to be guided by language hastily drafted as the wreckage of the World Trade Center still burned....[T]he law "should not be interpreted to mean ... that we can use military force whenever we want, wherever we want" A new AUMF would clarify, both legally and politically, whom we should be killing and why. It might also help reassure other nations that the U.S. has some sense of limits. (pp. 2-3)

Completely scraping the AUMF is the broadest potential solvency mechanism for addressing problems caused by drone strikes, but its complete repeal could also negatively affect a number of other War on Terror policies. Thus, proponents of reform suggest that there

are narrower ways to solve for the problems caused by drone strikes, such as amending the AUMF to require congressional permission to target enemies, increased transparency for guidelines and policies that determine the use of force, or banning the use of “signature strikes,” which allow broad targeting based off of terrorist profiles rather than specific targets (Hayden, 2013).

Other courses of reform could include having Congress formally declare war, which would override the 2001 AUMF and limit the scope of where drones could be used and whom could be targeted by the Commander in Chief (Calabresi, 2013). Additionally, a very popular approach in the literature is the establishment of a drone court that would have jurisdiction over cases involving both American citizens and foreign agents (Berger, 2013).

Arguments for restricting UAV drone strikes authority.

The literature points to a number of potential benefits of limiting the use of drone strike authority. For instance, one concern about the unchecked use of drone strikes is that they may risk the stability of governments in Pakistan and Yemen, which could undermine U.S. counterterrorism operations. As Boyle (2012) contends,

[D]rone strikes have jeopardized the stability of the governments of Pakistan and Yemen, possibly risking more chaos if they are overthrown....Obama promised to control counterterrorism operations and to put them in their proper place as one piece of a wider set of relationships with other governments. But he has done the opposite, allowing short-term tactical victories against terrorist networks to overwhelm America’s wider strategic priorities and leave its relations with key governments in a parlous state. His embrace of drones and his willingness to shoot first may also be policies that the US comes to

regret when its rivals, such as China begin to develop and use their own drones. (para. 19-20)

There is also strong evidence suggesting that the United States needs to set a precedent for use of drones before other countries, such as China, develop the technology and use them in an unregulated manner (Zenko, 2013). For example, debaters could argue that drone technology proliferation may cause India to attack suspected terrorists in Kashmir, China to strike Uighur separatists, or Iran to attack Baluchi nationalists in Pakistan (Waldman, 2013).

Another possible consequence of unchecked drone authority is that it fuels dangerous anti-American sentiment and undermines U.S. human rights promotion and U.S. soft-power. Particularly in Pakistan, this could create a very hazardous situation, as Morely (2012) notes:

The biggest danger that the United States now faces as a result of the drone war is not an al-Qaida attack on U.S. civilians...but a Pakistani defection from the U.S. war on the Taliban[It] runs the risk of making Pakistan's security establishment more intransigent and paranoid and will become fodder for right-wing forces propagating anti-India and anti-America opinions. All of which will only make it tougher for the Pakistani government to cooperate with the U.S..... Obama's drone war has made this dysfunctional relationship more dangerous. (para. 21-26)

Moreover, the literature also points to the potential for drone attacks to increase the threat of terrorism, which could undermine the war against terrorism (Bowcott, 2012). For instance, one could argue that drone strikes will cause the U.S. to lose the hearts and minds of local citizens and fuel extremism in target nations.

Additionally, in countries like Yemen, debaters could argue that U.S. drone strategy allows nations like Iran to interfere and gain greater regional influence (Mohtana, 2012). Thus, proponents of restrictions on presidential war powers claim that drones may cause unnecessary civilian deaths, fuel anti-American sentiment, and create dangerous precedent for drone technology proliferation. It should also be noted that there is literature that supports the idea that constraining presidential power and use of drones to a significant degree are sufficient to solve the above problems even if some drone attacks continue, because the U.S. would become a model for restrained drone use and more transparent in its targeting decisions (Harris, 2012).

A number arguments and theories from contemporary political philosophers could be deployed as warrants for restricting executive authority to use drone strikes. For instance, there is a clear link between drone use and Judith Butler's (2006) arguments about precarious life. In particular, Butler (2009) contends that American war decision-making frames the deaths of Muslims and non-American lives as less grievable than those of American citizens. In the context of drone strikes, debaters could emphasize that targeted kill lists and disposition matrixes that select targets for drone strikes differentiate between grievable lives. According to Butler (2009), the choice between which lives are worthy of protection or not is problematic because we should understand all life as conditioned by its precarious nature. Once we understand that death is always a possibility and that all life should be protected, then we may be able to develop a new ethics that truly values life and stops endless cycles of violence that try to protect some lives at the expense of others (Butler 2006, 2009).

Another line of critical inquiry is provided by Douglas Kellner (2008) and Stephen Graham (2006),

who argue that the increasing autonomization of war technologies displace and replace human beings, making killing and war easier to execute. According to these scholars, the problem with drone warfare is the intersection of a forceful unilateralism with highly-advanced war technologies creates a situation in which global nuclear warfare becomes more likely as the necessity for instantaneous attack decisions replace democratic deliberation. Moreover, scholars such as Graham and Kellner contend that the combination of new artificial intelligence technologies and disposition matrixes for drone strikes remove all human decision-making from the process of war, which devalues life in ways that escalates violence.

Arguments against restricting UAV drone strikes authority.

On the other side of this controversy, there are a number of potential negative arguments that debaters could make against limiting the president's ability to use drones. First, there are several potential policy options that could be advanced that negate the need for judicial or statutory restrictions on war powers. There are a number of scholars who argue that executive self-restraint of his/her authority to place names on targeted killing lists or use drone strikes calls into question the need for Congress or the Courts to act, which is *the* central question of this legal controversy. Additionally, debaters could argue that Congress should create a drone court that would award damages to those who suffered in wrongful drone attacks. One could argue that this course of action does not curtail the president's ability to use drones, but would likely result in a more careful approach to their use. Another approach could defend an increased transparency of U.S. drone operations rather than restrain the power of the president to use such attacks (Pearlstein, 2013).

In addition to these policy options, there are a number of disadvantages that can be presented against limiting the president's drone strike authority. First, debaters against change could argue that limiting our drone policy would alter our current military strategy, which would result in military overstretch, budget problems, and continued reliance on our nuclear deterrent. This change in strategy, one might contend, could hinder our ability to decrease our troop presence in nations such as Afghanistan and close military bases in Europe. Second, students might argue that increasing congressional oversight over drone policy may ensure significant political fallout as the conflict between drone advocates and opponents unfolds in congressional chambers (Vlahos 2013). Finally, a number of commentators suggest that a substantial curtailment of this presidential war power might jeopardize our current anti-terrorism policies (Carafano, 2013).

Restrictions on Offensive Cyber Operations authority.

Leading up to the 2011 military intervention in Libya, President Obama and his staff considered using a new military strategy to disable and confuse Libyan military command: Offensive Cyber Operations (OCOs). Although the administration opted not to use these operations in Libya, reporters discovered in June 2012 that the U.S. and Israel developed the Stuxnet worm, which was deployed to assault the computer systems in Iran's nuclear enrichment facilities. This attack marked "America's first sustained use of cyberweapons" (Sanger, 2012, para. 1).

The use of OCOs could pose interesting challenges for the constitutional limits of presidential war powers. Building off the expanded war powers authorized by the 2001 AUMF, the Obama administration is developing new OCO policies, with legal support from secret executive

memos, to justify offensive cyber-warfare powers. The “legal justification for this sweeping war-making power does not exist in public, and therefore its basis in the Constitution—or lack of any such basis—cannot be analyzed and debated” (Denniston, 2013). Thus, one could contend that it is important to make the decision to use OCOs more transparent given how little we know about these new technologies.

Policy options to restrict OCOs authority.

Scholars contend that we should treat OCOs like kinetic military operations in terms of congressional oversight. For example, Jason Healey and A.J. Wilson (2013) of the Atlantic Council maintain that the U.S. should increase congressional oversight over OCO authority through application of the WPR:

The United States needs the capacity to carry out offensive operations in cyberspace, but the Executive branch must accept that the same checks and balances that apply to physical hostilities apply also to cyber conflict. Future cyber attacks may have the ability to destroy or degrade an adversary’s critical infrastructure, cripple its economy, and seriously compromise its ability to defend itself. They may cause physical injury or even death.... [T]herefore [the U.S.] must apply the War Powers Resolution accordingly. The Founding Fathers could not have imagined a world in which weapons made of information travel around the globe at the speed of light; but they did know how to distribute power to encourage restraint in its application. Even in cyberspace, there is a voice for both branches. (p. 5)

Thus, these scholars provide advocates of reform with several potential arguments in support of limiting the authority of the president to conduct OCOs.

Arguments for restricting OCOs authority.

What are the possible implications of expanded authority to use OCOs? First, supporters of reform can contend that this new offensive strategy could risk provoking a global cyber-arms race that would be detrimental to the U.S. Tom Gjelten (2013) notes how OCOs might cause a global arms race:

...there are policy questions raised by the escalating government investment in offensive cyber war capabilities. One fear is that each new offensive cyberweapon introduced into use will prompt the development of an even more lethal weapon by an adversary and trigger a fierce cyber arms race. A hint of such an escalatory cycle may be seen in the confrontation with Iran over its nuclear program. US officials suspect the Iranian government was responsible for the recent wave of cyber attacks directed against Aramco, the Saudi oil company, and may also have been behind a series of denial-of-service attacks on US financial institutions. Such attacks could be in retaliation for the Stuxnet worm. (para. 31)

In addition to creating a possible arms race, OCOs could cause China and Russia to seek to constrain our ability to use such operations through international regulations, which might undermine overall U.S. cyber superiority and could cause overregulation of free expression and information on the internet (Gjelten, 2013). Perhaps the greatest potential threat that could be offered by students is that increased use of OCOs might provoke retaliatory strikes from multiple asymmetrical sources that could cause significant harm to the U.S. because the U.S. "is more dependent on a constantly running Internet system than many of its potential adversaries, and therefore could suffer more damage in

a counterattack” (Sanger, Markoff, & Shanker, 2009, para. 24).

Arguments against restricting OCO authority.

What are the possible arguments against limiting presidential war powers to conduct OCOs? The core disadvantage students could present is that these limits undermine our ability to counter likely cyber threats against our nation. The literature on this argument contends that our legal framework for checks and balances may be simply too outdated to give the necessary flexibility and speed to appropriately respond to these threats (Kallberg, 2013). Likewise, proponents of unrestricted U.S. superiority in cyber warfare contend that because cyberspace is the “fifth domain” of warfare, OCOs are necessary to maintain U.S. strategic superiority. According to Stephanie Dreyer, the U.S. “must not be afraid to use our intelligence and technology to our advantage. If America wants to remain a super power and maintain a strong geopolitical standing, we must use every weapon at our disposal to protect ourselves” (para. 15-16). Therefore, students might argue that judicial or statutory restraints may limit both U.S. flexibility or respond to threats and superiority to deter further attacks.

Restrictions on indefinite detention authority.

The indefinite detention of terrorism suspects and informants is another controversial presidential war powers issue. One hundred and sixty-eight detainees remain imprisoned in the Guantanamo Bay center without due process rights and they will likely remain in captivity with “no end in sight” (Greenwald, 2012b, para. 1). While repeatedly stating his opposition to the use of detainment, Obama actually maintained the detainment program, despite growing public and international criticism towards it. While some Court rulings have held

that detainees are allowed to submit habeas corpus challenges to their detainment, the administration has placed new hurdles on the habeas process that potentially erodes detainees' due process rights. As Glenn Greenwald (2012b), an author about detention issues and former constitutional and civil rights litigator, explains,

Last week, the Obama administration imposed new arbitrary rules for Guantanamo detainees who have lost their first habeas corpus challenge. Those new rules eliminate the right of lawyers to visit their clients at the detention facility....The DOJ recently informed a lawyer for a Yemeni detainee, Yasein Khasem Mohammad Esmail, that he would be barred from visiting his client unless he agreed to a new regime of restrictive rules, including acknowledging that such visits are within the sole discretion of the camp's military commander. Moreover, as SCOTUSblog's Lyle Denniston explains: Besides putting control over legal contacts entirely under a military commander's control, the "memorandum of understanding" does not allow attorneys to share with other detainee lawyers what they learn, and does not appear to allow them to use any such information to help prepare their own client for a system of periodic review at Guantanamo of whether continued detention is justified, and may even forbid the use of such information to help prepare a defense to formal terrorism criminal charges against their client. The *New York Times* Editorial Page today denounced these new rules as "spiteful," cited it as "the Obama administration's latest overuse of executive authority," and said "the administration looks as if it is imperiously punishing detainees for their temerity in bringing legal challenges to their detention and losing. (para. 1-3)

Consequently, the status of the use of indefinite detention is stable enough to ensure that students could sustain a year of debate about this area without the main arguments for and against constraint in this area fundamentally changing.

Most important issue for viability of this controversy area is not whether the Guantanamo Bay detention center closes. Indeed, even if the Obama administration and Congress had agreed to close the facility—which is what Obama’s detention comments in his May 23, 2013 speech at the National Defense University focused on—it would do little to end the practice of indefinite detainment (Greenwald, 2012b). Even with the closure of the facility, the precedent for the practice would remain and the Obama administration has made it clear that it would continue to use this power. As Greenwald (2012b) notes, in citing from ACLU Executive Director Anthony Romero, “the creation of a ‘Gitmo North’ in Illinois is hardly a meaningful step forward. Shutting down Guantanamo will be nothing more than a symbolic gesture if we continue its lawless policies onshore” (para. 10). Without constraining this presidential war power, the precedent will “merely set the stage for future Guantanamos, whether on our shores or elsewhere, with disastrous consequences for our national security. Worse, those policies and legal precedents would be effectively enshrined as acceptable in our system of justice” (Sen. Dianne Feinstein cited in Greenwald, 2012b, para. 25)

The current due process status for detainees is completely inadequate. According to Amos Guiora (2012), professor of law at the University of Utah, rather than clarifying these detainees status as criminal or war prisoner, status quo policies define them as neither. Instead, they have a hybrid status that creates confusion about the state of the detainees’ due process rights. Although the *Hamdi v. Rumsfeld* decision clarified that

detained U.S. citizens have due process rights, Justice O'Connor's arguments make it clear that non-citizens are not protected by the Constitution. Furthermore, as noted earlier in this essay, the *Boumediene v. Bush* decision has had little effect on limited executive detention powers, as the Obama administration has created a number of exceptions and detainee transfer options to evade the potential restricting force of this decision (Greenwald, 2012a).

Much like the Courts, Congress has maintained deference to the administration's policies on extraordinary rendition, tribunals, and CIA-run prisons (Owens, 2010). The Obama administration formalized indefinite detention without charge by signing the National Defense Authorization Act (NDAA) of 2012, which uses the same justifications as the AUMF to allow the executive to detain so long as suspects could be interpreted as being "part of or [having] substantially supported al-Qaeda, the Taliban, or associated forces that are engaged in hostilities against the United States or its coalition partners" (Tuccille, 2012, para. 3). And with little more than a whimper, Obama and Congress re-authorized the NDAA in 2013, making it more difficult to close the Guantanamo center and maintaining unchecked authority to detain suspects (Wolverton, 2013). Although some safeguards were written into the NDAA, they are insufficient to protect against indefinite detention without trial. The Gohmert Amendment, for example, was too vaguely written and does not address the unchecked nature of detention powers (Wolverton, 2013). Because of this environment, we believe that the status quo will remain very stable for debates over indefinite detention powers. Every indicator demonstrates that uniqueness will run in favor of maintaining, if not further increasing, these presidential war powers.

Policy options to restrict indefinite detention authority.

The literature discusses two ways to solve these advantages through limiting executive war power authority: 1) The federal courts strike down the NDAA; and/or 2) Congress repeals the NDAA (OpenSalon, 2013). The courts have the power to grant 5th and 14th amendment rights to prisoners in U.S. territories (including Guantanamo Bay), and Congress has oversight powers, both of which can be used to limit Executive authority to detain. As Guiora (2012), expounds,

The question of whether to extend constitutional protections to non-citizens was originally addressed in the Dred Scott decision, which held that the Fifth Amendment was not limited to the geographic boundaries of the states, but rather, such protections were extended to all incorporated territories of the United States. In the 150 years since Dred Scott... case law slowly extended constitutional protections to include non-citizens, provided they could demonstrate cognizable ties to the United States. The clearest tie was physical location within the borders of the United States....If Guantanamo Bay is held as a territory of the United States, then the precedent dictates that fundamental rights, like the Fifth and Fourteenth Amendments, should apply.... the Supreme Court has failed to articulate the rights granted to suspected terrorists. Similarly, Congress has failed to articulate these rights through its constitutionally granted oversight powers. (p. 177-178)

Thus, scholars contend that defining the limits of executive authority could reign in detention powers in this area (Blank, 2011).

Arguments for restricting indefinite detention authority.

This area of the topic could access a number of potential advantages that are discussed in the literature: averting terrorist recruitment; preventing the reduction of detainees' lives to the status of bare life; sustaining and increasing American soft/hard power; and preserving checks and balances between the branches. In terms of legitimacy and terrorist recruitment advantages, critics of the U.S. detention policy contend that these types of policies have "damaged America's image both at home and abroad," which undermine the legitimacy of the broader War on Terror and U.S. military and foreign policies (Welsh, 2011, p. 262). Furthermore, scholars argue that unrestrained executive authority to conduct the War on Terror with policies like detention is a state of exception that philosophers like Giorgio Agamben critique. As Corinna Mullin, Visiting Assistant Professor of International Relations at the University of Tunis, explains,

As the Italian philosopher Giorgio Agamben explained, the 'state of exception' is not characterised by 'a special kind of law (like the law of war)' but rather by the 'suspension of the juridical order itself', marked by 'the extension of the military authority's wartime powers into the civil sphere' in which the normal protections provided by the constitution and rule of law are no longer provided....The 'state of exception' as applied in the 'war on terror', a 'war' declared by the US and its allies against a tactic, and therefore unbound by time or space, is ongoing. (para. 5)

Additionally, students could argue that executive powers to detain have significantly minimized the role of the legislature and judiciary in counterterrorism policy,

which may blur the lines of separation of powers and checks and balances (Guiora, 2012).

Arguments against restricting indefinite detention authority.

For those arguing against a change in U.S. detention policy, the literature provides a number of points for rebuttal. In terms of disadvantages, Greg Jacobs (2012), legal partner at O'Melveny & Myers, Policy Director at the Service Women's Action Network, and combat veteran, provides a nice overview of the main disadvantages students could present against providing habeas rights to detainees. For instance, he contends that expanding habeas rights to detainees could severely undermine our War on Terror efforts:

From the military's perspective, the nightmare scenario has always been the prospect that the judiciary would assert the right to engage in a searching inquiry into the basis for every capture and detention of an alien abroad, even while active combat operations are ongoing. In World War II, such a rule could have required the government to litigate hundreds of thousands of habeas claims, costing the government significant expense and causing substantial disruption to military operations. (Jacobs, 2012, para. 20)

Jacobs (2012) further maintains that the status quo provides a sufficient check on government abuse because the Court has gradually increased evidentiary burdens in ways that have "struck an appropriate balance" between judicial interference with daily military operations and the government's use of detention in completely arbitrary ways (para. 14).

In addition to these disadvantages, there are a number of philosophical criticisms to detention reform

proposals that negative teams could explore. For example, students could note that there is an implicit assumption contained in the arguments made by proponents of change that a detainee could, at some point, receive a “fair trial” in our legal system. However, it is possible to argue that this is a rather questionable claim in our current security focused worldview. Moreover, we also envision that debaters could make a rather persuasive “whitewashing” argument. For example, debaters could argue that changing our detention policy may not end some of the more egregious practices of the War on Terror and could potentially result in more drone strikes if detaining prisoners is not an option.

Restrictions on wiretapping authority.

Wiretapping authority is a presidential war power that raises a number of potential concerns about civil liberties, U.S. foreign policy, and the War on Terror. Although it might not seem obvious that wiretapping authority would be a war power, the Bush administration used Commander in Chief powers and the broad authority provided by the AUMF to justify the National Security Agency’s (NSA) use of electronic surveillance and wiretaps (Fisher, 2008). Much like with drone strike and detention authority, candidate Obama promised to revoke the authority to conduct illegal wiretaps. However, President Obama has extended Bush-era policies and justifications for these policies. For example, without much media or public attention, Obama reauthorized the PATRIOT Act, which allows for a number of surveillance options in order to fight terrorism (Balko & Healy, 2013). In addition, Congress passed and Obama signed a five year extension to the Foreign Intelligence Surveillance Act (FISA), which authorizes wiretapping and new internet taps (Cameron, 2013). Although recent Court rulings appear to have limited executive wiretapping powers, these rulings have created such as high bar for

plaintiffs that the decisions are virtually meaningless. As a result, there appears to be little interest by the Courts to intervene to limit the administration's use of wiretapping (Sanchez, 2012).

Policy options to restrict wiretapping authority.

A number of potential options are available in the literature for proponents of wiretapping authority reform. For example, one option is for Congress to repeal or significantly reform the 2008 FISA Amendments Act (FAA). The FAA gives the government very broad powers to monitor Americans' international emails, phone calls, and text messages. Students could argue that the entire FAA should be repealed or reformed in order to require the government to be more transparent in surveillance use and increase FISA or Court oversight (Jones, 2009). Another approach students could defend would be to have federal courts reject the administration's use of state secrets privilege and sovereign immunity claims to deny judicial review of cases concerning surveillance abuse (Jones, 2009). Lastly, advocates of reform could suggest that an independent executive agency should be created by FISA to review the reasonability of each individual wiretap request, as suggested by Adam Burton (2006), an associate at White & Case LLP.

Arguments for restricting wiretapping authority.

Two potential advantages that could be claimed by advocates of surveillance reform include: (1) the restoration of separation of powers; and (2) the preservation of American civil liberties. For instance, critics of the current policy argue that the U.S. wiretapping program violates fundamental civil liberties and could be used to spy on domestic dissenters or any citizens, as was the case with recent revelations about NSA monitoring of cell phone accounts (Sanchez, 2008).

Undoubtedly, the most likely argument against changing the current surveillance policy will be that giving the executive broad latitude to conduct domestic surveillance operations may be necessary to combat terrorism. However, advocates for limiting surveillance authority can contend that broad wiretapping programs may undermine our counter-terror efforts. As Mark Agrast, Senior Fellow at the Center for American Progress (CAP), and Ken Gude (2012), Associate Director of the International Rights and Responsibility Program at CAP, explain,

...the program has compromised our national security in three primary ways. First, it has jeopardized the prosecution of alleged terrorists. If evidence obtained under the warrantless surveillance program was or will be used in any criminal prosecutions...then those convicted or accused terrorists can and surely will raise a constitutional challenge, potentially irreparably jeopardizing these criminal cases. Second, the NSA program could harm ongoing investigations. The FISA Court... could shut down any counterterrorism wiretaps that it authorized on the basis of unlawfully collected information....Third, the program has misdirected resources that would be better spent pursuing terrorists. NSA eavesdropping...yielded a tremendous volume of information that led nowhere. (p. 16-19)

Consequently, advocates for change can mount a robust defense of their position against these types of arguments.

Additionally, a number of philosophical objections to Bush and Obama's surveillance efforts can be used as warrants for reform. For example, constraining surveillance tactics is a fruitful area for exploration for students who are interested in investigating the

modern surveillance state. For instance, Daniel Williams (2009), Associate Professor of Law at Northeastern University, contends that these policies could be creating a surveillance state through the resurgence of “monarchical rule” (p. 500). Moreover, advocates for reform can contend that current surveillance programs create the conditions for a permanent state of racial exception. As Scott Michaelsen, an Associate Professor of English at Michigan State University, and Scott Cutler Shershow (2005), Professor of English and director of the graduate program in Critical Theory at the University of California, Davis, suggest,

In effect, a permanent and fully-institutionalized exceptionalism, beginning in the Fourth Amendment and spreading progressively outward, has now dismantled the distinction between the “alien” and the “citizen” (or what Carl Schmitt called the “enemy” and the “friend”) to such an extent that massive groupings of persons of color in the United States (Chicanos, Mexicanos, peoples of the southern Americas in general; and now Arab nationals, Arab-Americans, and Islamic peoples in general) live under what one has to call a fully-racialized rule of law. (p. 130)

In sum, there are several arguments to support claims for reforming the wiretapping and surveillance programs that students can utilize in debates about war power authority.

Arguments against restricting wiretapping authority.

There are a number of potential arguments that opponents to change in wiretapping and surveillance can claim. For instance, supporters of the current surveillance system can defend it by claiming that it has been effective at preventing terrorist attacks with minimal costs to our

privacy (Malcolm, 2012). Similarly, other advocates of the current system contend that reforms and increased congressional oversight could complicate and hinder the process of tracking terrorists. As John Yoo, Professor of Law at the University of California, Berkeley, and legal architect of many of the Bush administration's expansive war powers, explains, "Legislatures are too slow and their members too numerous to respond effectively to unforeseen situations. Only the executive can act to protect the 'security and interest of the public'" (para. 6). Also, opponents to change could maintain that broad wiretapping powers may be useful to several law enforcement duties, such as combating domestic "homegrown" terrorism, drug trafficking, organized crime, and other crimes (Freeman, 2013; *New York Daily*, 2009).

Restrictions on covert operations authority.

The Bin Laden raid was demonstrative of the impressive intelligence gathering and military capabilities of the United States. Perhaps most impressive was the level of secrecy that was maintained which allowed this mission to succeed. After the operation, Secretary of Defense Leon Panetta noted that the raid was successful because it was a Title 50 operation, classifying it as a covert intelligence operation rather than a Title 10 Department of Defense military operation. Due to this classification, the Bin Laden operation was conducted under very different and more lax congressional oversight standards than traditional military activities (Wall, 2011).

This raid illustrates the stakes involved in the debate over presidential war powers and covert operations. With the increased use of covert operations and intelligence gathering activities as tools of foreign policy, there is an increased emphasis on executive control over foreign

affairs (Carusan & Farar-Meyers, 2007). What makes the recent use of Title 10 rather than Title 50 operations potentially concerning is that this situation can create confusion about the proper roles of U.S. military forces, the proper oversight mechanisms, and the necessary amount of transparency for the use of these forces (Wall, 2011).

Policy options for restricting covert operations authority.

Policy options for reforming covert operations authority are diverse. We describe two broad ways that advocates for covert operations reform could constrain executive authority in this area. The first broad approach is to constrain executive power to pursue foreign policy objectives. One of the more straightforward approaches advocated by Adrian Vermeule (2009) could be to create additional judicial oversight for covert operations. This could be done by overturning case law in the *Vermont Yankee* decision, which limited judicial oversight of executive agencies. Vermeule (2009) hypothesizes that such a decision could establish grounds for judicial oversight that could constrain executive decision-making ability. This suggestion would not increase Supreme Court oversight of every executive action. Instead, it would authorize lower courts to create legal tests and precedent that constrain what the executive might legally do regarding covert operations. This particular option is considered fairly controversial in the literature and has strong defenders and opponents, making this a rather robust area to mine for potential arguments.

Another option is to use the courts to overrule specific cases that are relevant to presidential covert operations powers. While much of this conversation has taken place with regards to the detainment of prisoners during the War on Terror, there is ample ground for it

to be applied to presidential power more generally. For example, Charlie Savage (2013) reported on a Supreme Court decision that limited the ability of the CIA to maintain secrecy surrounding its UAV drone strike program. While that particular war power is covered in greater detail in earlier sections of this essay, the grounds offered in that decision dealing with government secrecy could significantly limit the way the executive would be able to use the CIA or other covert forces.

Additionally, several legislative means to limit covert operations authority exist that proponents of reform could advocate. The first of these would be to limit funding for covert operations. Traditionally this is done through wording written into appropriations bills that require that oversight be permitted as a condition for funding special programs. While this approach has not always succeeded, there are a number of historical cases that proponents could point towards to demonstrate the effectiveness of this approach (Elsea, Garcia, & Nicola, 2013).

Another legislative option would include increasing the frequency of joint hearings over covert operations (Halchin & Kaiser, 2012). Critics of current covert operations contend that a significant part of the problem with limiting the use of these activities is the difficulty in getting information on CIA activities dispersed to both houses of Congress. Increasing joint hearings could allow Congress to take united action to limit executive powers. This could be done either in conjunction with or separate from empowering the Government Accounting Office (GAO) to audit the intelligence community. As Halchin and Kaiser (2012) argue, such a move would provide an investigative approach, which does not rely on self-disclosure from the intelligence community.

The second broad approach to limiting presidential

war power over covert operations would be to restrict powers that are derived from or justified by executive orders, signing statements, and other policy documents released by the president. A particularly noteworthy example of this can be found in the signing statement attached to *The Department of Defense and Emergency Supplemental Appropriations for Recovery from and Response to Terrorist Attacks on the United States Act, 2002*. In this signing statement, Bush specifically rejected demands that Congress be notified of funding for special programs including covert operations. Proponents of reform could maintain that Congress should specifically override and limit the use of such signing statements that seek to limit oversight and transparency of covert operations.

Arguments for restricting covert operations authority.

There are several benefits to reforming covert operations authority that supporters of reform could present. The first advantage could be to decrease bureaucratization. As Wall (2011) notes, major tensions exist between the CIA and DOD regarding who has appropriate jurisdiction to conduct human intelligence operations. As a result, proponents of change suggest that intelligence gathering may be weakened by departmental bureaucratization and a lack of information sharing. Because of the confusion created by the increasing use of Title 50 operations, critics argue that more congressional oversight and transparency may help ensure a proper flow of intelligence to both the CIA and DOD. The literature contends that as a result of this reform, the military effectiveness of these covert operations could increase as a result of better intelligence sharing.

A second benefit to overall covert operation authority reform is congressional-executive balance of powers.

Because declarations of war can be done by deed or word, there is a solid basis on which supporters of reform could advance the claim that Congress should have the ability to veto certain covert operations that could be described as acts of war (Sloan et al., 2012). It could be argued that this approach would bolster covert operations legitimacy and institutional checks and balances. For example, advocates of covert operations reform maintain that these changes would bolster international law. As Sloan et al. (2005) note, current executive authority and lack of congressional oversight call into question the international legitimacy of U.S. covert operations. Supporters of reform could contend that increased oversight and transparency would increase compliance with and the legitimacy of international law.

Another advantage is U.S. global leadership legitimacy. Beyond bolstering our compliance with international law, supporters of change could maintain that restraining our use of covert operations could help redefine a vision for sustainable global military and foreign policy leadership. Particular in an age where forward deployed forces and permanent military bases appear to be less important to sustaining U.S. leadership, covert forces are increasingly deployed now to complete U.S. military and foreign policy objectives. A debate about how these forces should be used and under what conditions could be important to re-envisioning U.S. global leadership as a whole.

Arguments against restricting covert operations authority.

There are a number of promising arguments against restricting covert military authority. One option would be to argue that the executive branch is the most appropriate branch to address problems with covert

operations. As Wall (2011) argues, the executive, because of its unitary character, is better suited to decide which agency or branch is most appropriate to oversee covert operations. As such, opponents to change could argue that presidential power to define the functions of its agencies should be maintained.

Moreover, there are sovereignty disadvantages that could be used to respond to arguments about the necessity for U.S. covert operations to comply with international law. Opponents to this type of reform could mine the many forceful responses offered by the executive branch against such reform attempts in the past for arguments as to why such changes might violate the sovereignty of the United States. Students advancing such claims could argue that this violation of sovereignty could spark fierce domestic political opposition and undermine U.S. flexibility to deal with international crises.

Lastly, opponents to change can deploy a number of arguments that advocate for a more conservative vision of U.S. leadership. In opposition to a constrained vision of U.S. global leadership, opponents of reform would be able to argue for a more aggressive and expansive use of covert operations to maintain U.S. military or geopolitical dominance. Additionally, proponents to this vision of U.S. leadership could argue that other options for reform, like the use of executive self-restraint rather than judicial or statutory limitations, could better resolve the potential problems with covert operations while maintaining U.S. global leadership.

Restrictions on use of force to support NATO/ United Nations operations.

Obligations created by international and security treaties implicate the larger debate about unchecked presidential war powers. In particular, presidents frequently contend that U.S. participation in NATO or

U.N.-authorized military operations are automatic treaty requirements that do not require prior congressional approval or declaration of war. The 2011 military intervention in Libya sparked a large debate in the literature about the relationship between our alliances and executive war powers. Gertler, Blanchard, Dale, and Elsea (2011) explain the nature of the controversy by noting,

[The WPR] requires the President in every possible instance to consult with Congress before introducing American Armed Forces into hostilities or imminent hostilities unless there has been a declaration of war or other specific congressional authorization....Some recent operations—in particular U.S. participation in North Atlantic Treaty Organization (NATO) military operations in Kosovo, and in U.N.-authorized operations in Bosnia and Herzegovina, in the 1990s—have raised questions concerning whether NATO operations and/or U.N.-authorized operations are exempt from the requirements of the War Powers Resolution.... Given these provisions of U.S. law, and the history of disagreements between the President and the Congress over presidential authority to introduce U.S. military personnel into hostilities in the absence of prior congressional authorization for such actions, it seems likely that a presidential effort to establish a “no-fly zone” on his own authority would be controversial. Controversy would be all the more likely if the President were to undertake action “pre-emptively” or in the absence of a direct military threat to the United States. (p. 6)

As noted previously, because the Obama administration has adopted a National Security Strategy that embraces pre-empting potential future threats, there lies the possibility that interbranch conflicts over

presidential authority to deploy armed forces in support of alliance or U.N. operations will increase in the future.

Policy options to restrict the use of force to support NATO/ United Nations operations.

To restrict the use of force in NATO/U.N. operations, advocates for reform could defend actions such as Dennis Kucinich's (D-OH) legislation to require prior congressional approval for U.S. participation in NATO operations (White, 2012). Or, proponents of change can argue that the WPR or the United Nations Participation Act should be amended to apply WPR constraints on U.S. participation in U.N. operations (Grimmett, 2012). We also envision that students could argue that future specific NATO or U.N. military operations are dangerous for U.S. national security and regional and international stability and that limiting U.S. support for those operations is necessary. For instance, students could argue that a NATO or U.N. operation against Iran is dangerous and the U.S. should not militarily support such action. There are also a number of critical philosophical interrogations into the potential dangers posed by militarized global governance that debaters can present in support of their cases for reform. For instance, Hardt and Negri's (2001) interrogation of the problematic nature of biopolitical global management could be used for these kinds of arguments. Furthermore, proponents for reform could contend that NATO and the U.N. mask U.S. imperialism and the true nature of the national security state.

Arguments for restricting the use of force to support NATO/ United Nations operations.

One of the interesting aspects of this part of the controversy is that advocates for change can argue that international alliances may pose a threat to the United States either because they support or hinder U.S. foreign

policy objectives. For instance, on one hand, proponents for reform could contend that the precedent set by the NATO Libya operation is dangerous because it could justify a reckless foreign policy that may fuel adventurist and diversionary wars or undermine global non-proliferation efforts (Gibbs, 2012). On the other hand, advocates could argue that the Libya mission creates a potentially dangerous precedent that overly constrains U.S. hard power by justifying the U.N.'s Responsibility to Protect (R2P) doctrine. For example, proponents of this position could maintain that the R2P precedent might allow the U.N. to veto future U.S. military operations, which potentially undermines U.S. military power (Groves, 2011).

Additionally, advocates of reform could argue that any alliance system is problematic because it creates obligations on the U.S. to respond to threats to other members of the alliances, which risks entangling the U.S. in regional conflicts that could lead to nuclear-armed power confrontation. For instance, Ted Galen Carpenter (1997) of the CATO Institute and Christopher Layne (2012), the Robert M. Gates Chair in Intelligence and National Security at the George Bush School of Government and Public Service at Texas A&M University, have written a number of articles that make these kinds of claims.

Arguments against restricting the use of force to support NATO/ United Nations operations.

Opponents to reform have a number of excellent arguments at their disposal. In terms of alternative proposals for reform, opponents can argue that rather than constrain U.S. executive authority, full withdrawal from these organizations would best solve the numerous entanglement issues posed by these alliances (Bandow, 2012; Tracinski, 2003). Furthermore, against proposals

that argue that specific interventions would be dangerous, opponents to change can argue that Congress should cut DOD funding for particular NATO or U.N. operations. For example, in 2011, House Resolution 2278 was offered to limit the use of funds for the NATO operation in Libya.

In terms of disadvantages and philosophical inquiries, opponents can contend that the U.N. is necessary for global humanitarian missions and these may be important to prevent instability and humanitarian crises. In addition, critics of reform can argue that congressional oversight would unnecessarily hinder U.S. responses to threats to key European allies or set precedent for other security alliances, which could encourage aggression against those allies and spark regional and international instability. Furthermore, supporters of the status quo could advance that that our current alliances and commitment to global institutions is important to preserving U.S. global leadership. Lastly, opponents of reform also have a number of critical philosophical argument options available to them. Contingent on the direction of the advocate for change's arguments, critiques of the development of a global system of biopolitical Empire or the legitimization of a dangerously imperial and militaristic U.S. hegemony could be presented by the opponents of change.

Scholarly Approaches to Restrict the Use of War Powers

Cult of the presidency.

In addition to specific debates about certain policy reform, a number of philosophical and critical scholarly inquiries intersect with the larger war powers debate. For example, debaters could contend that a cult of the presidency has developed due to unrestrained presidential powers. Dr. Dana Nelson (2008), Gertrude

Conaway Vanderbilt Professor of English and Director of Graduate Studies at Vanderbilt University, maintains that an unrestrained presidency could promote the myth that all politics are national and controlled by the executive, which may undermine local citizen action and democratic values, while promoting a paternalistic relationship between local citizens and the federal government. While this brand of presidentialism could arise from a number of sources, students could argue that war powers are a fundamental source of deference to expanded executive branch powers (Nelson, 2008). It is possible to argue that this focus on the presidency undermines local movements and practical localized solutions that are already in place. As David Sirota (2008) explains,

Why is this dangerous? First and foremost, by ignoring local elections and issue-based organizing in favor of presidential politics, activists make presidential progress less likely.” Even the best presidents need social movements to accomplish transformational change,” warns community activist Deepak Bhargava in *The Nation* magazine’s latest White House-centric edition....Worse, presidentialism leads us to ignore the arenas where issues are already being sorted out. For example, how many of the Democratic convention delegates incensed by the Obama-McCain energy brouhaha have any idea that just beyond Denver’s Rocky Mountain horizon, a battle over Colorado’s massive gas reserves will more immediately impact the national energy crisis than the inane presidential back-and-forth about offshore drilling? (para. 8-11)

To reign in this type of presidentialism, students can maintain that grassroots demands from the people are necessary to decenter the executive as the focus of our democracy. It can be argued that making these types of demands and a fundamental recalibration of our politics

can create a more robust democracy (Engels, 2009).

Critique of capitalism and liberal democracy.

Debaters can also critically interrogate presidential war authority's promotion of liberal democracy and capitalism. A number of scholars have noted how the war machine created by current war powers authority justifies global imperialism in order to enable further capitalist expansion. For instance, Jodi Dean (2005) draws from psychoanalysis to examine how presidential war powers have led to these problems.

Critique of National Security State.

Similarly, students can examine the interconnections between unrestricted war powers and the maintenance of the national security state. Garry Wills (2010), in his book, *Bomb Power*, provides a detailed critique of how executive usurpation of power was enabled by the secrecy of the original Manhattan Project and the later nuclear weapon infrastructure, which allows debaters to access critiques of nuclearism, technocracy, and other similar arguments. According to Wills (2010),

This book has a basic thesis, that the Bomb altered our subsequent history down to its deepest constitutional roots. It redefined the presidency, as in all respects American's "Commander in Chief" (a term that took on a new and unconstitutional meaning in this period). It fostered an anxiety of continuing crisis, so that society was pervasively militarized. It redefines the government as a National Security State with an apparatus of secrecy and executive control. It redefines Congress, as an executor of the executive. And it redefined the Supreme Court, as a follower of the follower of the executive. Only one part of the government had the supreme power, the Bomb, and all else must defer to it, for the good of the nation, for

the good of the world, for the custody of the future, in a world of perpetual emergency superseding ordinary constitutional restrictions. (p. 1)

As a result, we maintain that debaters will have a wide range of critical approaches to critique presidential war powers.

Review of the Core Arguments against Restrictions on Presidential War Powers

This section of the essay reviews a number of broad arguments that opponents to reform can deploy in almost any debate on war powers. To begin, we examine the negative consequences or disadvantages to many policy reform options. In particular, we explore the effect of policy change on the status of U.S. leadership, U.S. War on Terror credibility, and U.S. international peacekeeping and human rights enforcement. The next part of this section outlines a few of the non-judicial or non-statutory policy options for reform that opponents to a constrained executive could advance. Lastly, we offer a number of philosophical objection arguments about U.S. imperialism, global governance, feminist theory, capitalism, and legal liberalism that opponents of change can advance.

Leadership/Hegemony

The core disadvantage that opponents to change can present in debates about limiting or reducing presidential war powers is that limitations could undermine necessary flexibility to deal with emergencies and ever-changing strategic environments, particular in a post 9-11 world. This argument was raised originally in response to the 1973 WPR, served as the Bush administration's justification for expanding its powers in the wake of 9-11, and the Obama administration's current defense of its powers as well. Appropriately, we

begin with John Yoo (2006), the architect of the Bush administration's defense of its War on Terror policies, as he offers potential arguments for the need for unrestrained presidential war powers:

Critics of these conflicts want to upend long practice by appealing to an "original understanding" of the Constitution....The Constitution does not establish a strict war making process because the Framers understood that war would require the speed, decisiveness, and secrecy that only the presidency could bring....Rather than imposing a fixed, step-by-step method for going to war, the Constitution allows the executive and legislative branches substantial flexibility in shaping the decision making process for engaging in military hostilities. Given the increasing ability of rogue states to procure weapons of mass destruction (WMDs) and the rise of international terrorism, maintaining this flexibility is critical to preserving US national security. (p. 22-25)

Furthermore, opponents to change could contend that restrictions, particularly statutory limitations, harm presidential flexibility in a crisis. As Adrian Vermeule (2006), Professor of Law at Harvard, notes,

The reason for the failure of statutory frameworks is plain. When an emergency or war or crisis arises, the executive needs flexibility; because statutory limitations determined in advance can only reduce flexibility, and do so in a way that does not anticipate the particular requirements of a new emergency, no one has any *ex post* interest in insisting that these limitations be respected. Ackerman acknowledges the grim historical record but provides no valid reason for thinking that his framework statute - which is far more ambitious than

the other ones - might fare differently. (p. 647)

Other scholars contend that a strong and unrestrained presidency has several advantages over the legislature in making foreign and war policy. For instance, opponents of change could advance a number of arguments about efficiency and implementation as reasons why unrestrained presidential powers are important. Michael Benjamin Weiner (2007) proves a number of these arguments in stating,

...the practical advantage the Executive branch has over the Legislative branch: It is more efficient for a small, relatively homogenous group to reach a decision than it is for a large, diverse group to reach.... while Congress can announce foreign affairs policy, it lacks the institutional framework to implement that policy. Thus, in practice Executives mainly have been the actors and Congresses the reactors. As a result, it should be no surprise that ...“presidents have in fact deployed U.S. armed forces beyond the U.S. borders hundreds of times without authorization or subsequent ratification by Congress. (p. 866-867)

Moreover, critics of the WPR provide many arguments about how restrictions on presidential decision-making could jeopardize important military missions or risk the lives of U.S. troops (Turner, 2005). Overall, given the urgency posed by crises and emergencies, opponents to change could argue that strong presidential war authority is necessary to respond to these events in a timely fashion (Rudalevig, 2005). Thus, the core debate about reducing presidential war powers asks us to consider the advantage of restoring balance of powers and stopping presidential military adventurism versus the disadvantage of undermining necessary presidential flexibility and speed to deal with rapidly changing strategic and tactical situations.

Terrorism Credibility

Many advocates of unrestricted presidential war powers contend that only a strong executive with full war powers has the flexibility to deal with threats of proliferation and WMD terrorism. Several proponents of this view argue that detailed and somewhat complicated congressional or judicial oversight mechanisms are most appropriate when contemplating war against traditional nation-state enemies, where a state's build up to war can be more easily monitored and evaluated. However, supporters of strong presidential powers can maintain that in an era featuring hostile non-state and asymmetrical terrorist threats, maximum flexibility for executive response is important to deter potential terrorist threats. Perhaps offering the strongest expression of this argument is John Paul Royal (2011) of the Institute of World Politics:

Proliferation of weapons of mass destruction (WMD), especially nuclear weapons, into the hands of these terrorists is the most dangerous threat to the United States....[R]ogue regimes that are openly hostile to the United States and have or seek to develop nuclear weapons capability such as North Korea and Iran, or extremely unstable nuclear countries such as Pakistan, pose a special threat to American national security interests....The United States must pursue condign punishment and appropriate, rapid action against hostile terrorist organizations, rogue nation states, and nuclear weapons proliferation threats in order to protect American interests both at home and abroad....Only the executive branch can effectively execute this mission, authorized by the 2001 AUMF. (p. 13)

Other scholars offer arguments that congressional oversight could be problematic because inevitable

congressional gridlock could create a sign of weakness and lack of U.S. resolve (Kahn, 2000). Overall, since these war powers were authorized to deal with emerging terrorism threats, terrorism credibility represents a core disadvantage that opponents of change could present in any war powers debate.

International Peacekeeping/Human Rights Enforcement

Another argument that advocates of strong presidential war powers could advance is that increased congressional oversight could lead to inaction (real or perceived) towards international humanitarian crises. Similar to the arguments made in favor of presidential flexibility in the context of preventing terrorism, proponents of this view maintain that the slow process of congressional consultation may signal to human rights violators that the U.S. is reluctant to act, particularly if the violators can increase the perceived military or political costs of intervening. Paul Kahn (2000), Robert W. Winner Professor of Law and Humanities at Yale Law School, explains this argument in stating,

The gross violations of human rights in Haiti, West Africa, the states of the former Yugoslavia, Cambodia, Somalia, and Rwanda have prompted international responses....it is the failure to intervene, not intervention that requires explanation. We saw this most dramatically, for example, in the recent intervention in East Timor....The pressing question today is not "what is the distribution of foreign affairs power between Congress and the president?" but rather, "what is the institutional mechanism through which the United States will assume its role in the emerging global order?"....[T]here is a tendency to believe that interpretation of the war powers provisions must proceed in a way that is independent

of such policy considerations. But this distinction between law and policy disables the debate from the beginning....To think that the vision of United States v. Curtis-Wright Export Corp., let alone the drafters' vision of 1787, is particularly relevant to the American position in this new world order is to come to the debate with a wholly inadequate set of intellectual tools....To attempt to reinvigorate Congress's war declaring role would only exacerbate this problem of incongruity. It would be an act of international irresponsibility framed as a matter of constitutional responsibility....We do not need eighteenth century solutions to twenty-first century problems. (p. 41-59)

While the evidence provided here is rather generic, there are a number of specific international situations where intervention is likely unpopular with Congress that could act as scenarios for this type of argument. For instance, arguments from the recent debates weighing the pros and cons of intervening in conflicts in Central Africa, Crimea, Libya, Sudan, and Syria could provide debaters with many examples of why consultation and oversight either hinders or enables effective U.S. military intervention. In particular, the arguments surrounding Obama's 2013 decision to consult Congress about a potential Syrian intervention is an excellent example of the debate.

Non-Judicial/Statutory Restrictions Reform Options

Now that the major disadvantages to reform have been reviewed, we now examine non-judicial/statutory reform options that debaters might defend in war powers debates. To demonstrate that judicial or statutory restrictions are not necessary to resolve the problems potentially posed by excessive war powers, students could maintain that other policy options for change exist

that negate the need for judicial/statutory restrictions. Here we provide an overview of the basic debate about which federal branch or process should be used in restraining executive war authority.

Executive self-restraint.

A popular option will likely be for the president to restrain him/herself. In the context of drone strikes, for example, this policy option could require the executive branch to properly account for civilian deaths caused by the drone program, consolidate all drone strikes under the DOD, and increase transparency of the decision making used for strikes (Friedersdorf, 2013). We can imagine similar options in the context of detention, wiretapping, and declarations of war. The central argument advanced by this position is that the executive should retain its authority, but it should restrain the dangerous uses of those powers. While the result of the option likely would result in the same limitations on the executive as the plan, self-constraint may not succumb to the political infighting congressional restraint would generate and it would also allow the same level of deference given to the executive in the status quo.

There are a number of arguments against the use of executive self-restraint. For example, students could argue that one reason why this option is inferior to judicial or statutory restrictions is because it keeps the precedent of the presidential war power on the books, which undermines self-restraint's ability to solve the problem of excessive war power authority. For example, as William P. Marshall (2008), Kenan Professor of Law at the University of North Carolina, explains,

Presidential power also inevitably expands because of the way executive branch precedent is used to support later exercises of power....The use of such powers by previous Presidents stands as

authority for a current or future President to engage in similar actions. Such arguments have considerable force, but they also create a one-way ratchet in favor of expanding the power of the presidency.... But it is a President's action in using power, rather than forsaking its use, that has the precedential significance. In this manner, every extraordinary use of power by one President expands the availability of executive branch power for use by future Presidents. (p. 510-511)

Another argument that could be advanced is one raised by David Cole (2003), Professor of Law at Georgetown, who suggests that as long as the precedent exists, despite restraint from use, it could be evoked later as future emergencies and exceptions will always justify its use without structural limitations. Students could further contend that self-restraint may not be perceived and public expectations to use the power in times of crisis might lead to their inevitable use. Thus, advocates for judicial and statutory constraint could argue that legal restraints and oversight are necessary. As Marshall (2008) explains,

Accordingly, the question whether a President has exceeded her authority is seldom immediately obvious because the powers of the office are so open-ended. This fluidity in definition, in turn, allows presidential power to readily expand when factors such as national crisis, military action, or other matters of expedience call for its exercise. Additionally, such fluidity allows political expectations to affect public perceptions of the presidential office in a manner that can lead to expanded notions of the office's power. This perception of expanded powers, in turn, can then lead to the perceived legitimacy of the President actually exercising those powers. Without direct prohibitions

to the contrary, expectations easily translate into political reality. (p. 510)

As a result, we believe that, based on these substantive reasons grounded in the literature, a very lively debate about the merits of self-restraint versus judicial or statutory restraint can be had. While there are many issues raised in war powers debates about foreign policy and specific military tactics, the heart of the controversy is about which branch is most appropriate to oversee war operations.

Courts/Congressional action.

Debate over which non-executive branch should impose external constraint on the executive is a potentially fruitful one. Fiona de Londras and Fergel Davis (2010) discuss the various pros and cons of constraining the executive vis-à-vis Congress or the Courts:

The well-established pattern of Executive expansionism and limited oversight of Executive action in times of terrorism is problematic from the civil libertarian point of view. How to limit such action has been the subject of much scholarship, a large amount of which focuses on perceptions of institutional competence rather than effectiveness. For the authors, the effective control of security-focused state action is to be judged by the extent to which it consists only of action that is necessary and proportionate and thereby strikes an appropriate balance between security exigencies and individual rights. This article, written and structured in dialectic form, presents competing perspectives on effective oversight mechanisms: on the one hand, an extra-constitutionalism perspective, proposing a limited role for the Judiciary and emphasizing the need for legislative and democratic controls; and on the other,

an argument for judicial muscularity. (p. 19)

Based on these types of arguments outlined by de Londras and David (2010), we are confident that discussions about which actor should constrain war powers authority is rather germane to a legal controversy such as this one.

Congressional power of the purse.

Jennifer Elsea (2013) provides an overview on the debate concerning two distinguishable options Congress has to limit the executive: passing statutory language that explicitly limits the executive or withholding funding for certain practices. Debaters can argue that passing legislation with language explicitly limiting executive authority would probably result in more controversy, but it would certainly be a more powerful limit. Conversely, arguments can be made that simply withholding funding may create less initial controversy, but is open to circumvention, and future inter-branch conflict.

Negative Philosophical Objections

In addition to the disadvantage and alternative forms of reform arguments, debaters opposing change could raise a number of philosophical and critical scholarly arguments against restricting war powers. In this section of the essay, we review a few of the more likely options discussed in the literature.

Whitewashing/sanctioning of imperialism/ security-state/empire.

A number of critical scholars would view reform as doing little more than legally sanctioning imperialism and the state security apparatus rather than truly reforming or changing it. For example, Hardt and Negri's (2001) work on *Empire* can provide opponents of change with arguments about how viewing war as

rule-driven ignores the constant state of exception that contemporary war has created. Additionally, as we have previously argued, there is a rather intuitive argument to be made that policies that fail to outright eliminate or ban the president's war authority legitimize the War on Terror and other adventurist foreign policy by "cleaning up" the uglier and more visible aspects of the policy.

Feminist critique of International Relations theory.

Feminist international relations theory offers a number of important critical insights into notions of power and balance of power that opponents could use to critique efforts for reform. An overview provided by Abigail Temperely (2013), provides a succinct summary of some of these issues:

Traditional theories assert that international relations ought to be understood solely in terms of the masculine concepts state, sovereignty, war and power. Feminine notions, primarily in the domestic sphere, are not considered to be relevant. As such the dominant Realist and Liberal theories in the discipline maintain a sharp dichotomy between interstate, political, public, masculine and intrastate, domestic, private, feminine and assign significance only to the former, thereby disregarding the impact of the latter. It is not possible in the space of this essay to explore in depth the ways in which all of these concepts are exposed as gendered by feminist theorists, and the significance that so doing has for the discipline of international relations. (para. 2)

In advocating for change, it is likely that supporters of reform may uphold masculine understandings of sovereignty, war, and power or draw lines between interstate and intrastate matters. Consequently, a number of criticisms about power can be examined with this type

of critique.

Critical legal studies and critiques of legal liberalism.

Another philosophical approach students can draw arguments from are found in interrogations of how the law operates. Both conservative and liberal legal critics offer a number of indictments of Legal Liberalism. They contend that Legal Liberalism is grounded in a mistaken faith that laws and constitutional structures can produce meaningful legal and societal change. For example, Eric Posner and Adrian Vermeule (2011) draw on Carl Schmitt's critique of liberal legalism and its attempt to structurally contain the executive branch based on a classical rule-of-law theory of the state. As they explain, a number of potentially powerful critiques of legal constraints can be advanced by opponents of change:

Our thesis is that these modifications to liberal legalism fail. Either they do not go far enough to square with the facts, or they go so far as to effectively abandon the position they seek to defend. We live in a regime of executive-centered government, in an age after the separation of powers, and the legally constrained executive is now a historical curiosity.... Whereas Madison is an exemplar of liberal legalism, particularly in the domain of constitutional theory, we draw upon the thought of the Weimar legal theorist Carl Schmitt....Schmitt's critical arguments against liberal legalism seem to us basically correct, at least when demystified and rendered into suitably pragmatic and institutional terms. A central theme in Schmitt's work, growing out of Weimar's running economic and security crises in the 1920s and early 1930s, involves the relationship between the classical rule-of-law state, featuring legislative enactment of general rules enforced by courts, and

the administrative state, featuring discretionary authority and ad hoc programs, administered by the executive, affecting particular individuals and firms. The nub of Schmitt's view is the idea that liberal lawmaking institutions frame general norms that are essentially "oriented to the past," whereas "the dictates of modern interventionist politics cry out for a legal system conducive to a present- and future-oriented 'steering' of complex, ever-changing economic scenarios." Legislatures and courts, then, are continually behind the pace of events in the administrative state; they play an essentially reactive and marginal role....[T]he major constraints on the executive, especially in crises, do not arise from law or from the separation-of-powers framework defended by liberal legalists, but from politics and public opinion....A central fallacy of liberal legalism, we argue, is the equation of a constrained executive with an executive constrained by law. The pressures of the administrative state loosen legal constraints, causing liberal legalists to develop tyrannophobia, or unjustified fear of dictatorship....The executive, "unbound" from the standpoint of liberal legalism, is in some ways more constrained than ever before. (Posner & Vermeule, 2011, p. 4-5)

Overall, we believe that this small sampling of critical literature provides opponents of change with a number of philosophical objections to restraints on presidential war powers. Now that we have demonstrated that there is a balanced literature base with predictable pro and con arguments, we now discuss a number of unique educational benefits offered by a year-long debate on restricting presidential war powers.

The Unique Educational Opportunities Offered by Debating War Powers

Timely

The inspiration for writing this essay was the constant press coverage in the last three years about Obama's executive war powers and why the expansion of these powers since the attacks of 9-11 is dangerous. The timeliness of the topic will allow students to access a deep literature base that contains recently written peer-reviewed academic and legal articles and books. As a result, this is a great time to debate about the controversy surrounding presidential war powers. However, as we previously noted, there is little chance that the timeliness of the topic will produce ever-shifting argumentative ground. While the Obama administration has faced a number of challenges to its war powers in 2013 and 2014, the underlying authority of these policies has not changed.

2013 was the 40th anniversary of the passage of the 1973 War Powers Resolution, making this an excellent time to debate the value of constraining presidential war powers. We believe that this timing could create several opportunities for programs to host public debates on the subject. Likewise, the anniversary produced scholarly discussion of the WPR and presidential war power restraints, offering even more timely literature on the topic.

Clearly Defined Controversy Mandating Substantial Change

A number of discussions in the college debate community about the crafting of topics have suggested controversies for debate should require a large degree (or quality) of change by the advocates for reform, have a fairly stable argumentative ground so that advocates

for change cannot argue that their change is so similar to some other action being taken in the status quo that any negative consequences to that action should have already occurred, and that there be a clearly identifiable disadvantage to the resolution.

We believe this controversy includes all three of those elements. As we have demonstrated so far, there is little chance that Congress will limit the president's war powers in the status quo. As a result, the action taken will be significant and controversial. Additionally, there is a clear disadvantage to the topic – constraining presidential war powers undermines U.S. ability to respond to emerging rogue nation and non-state threats. Based on these standards, we believe that this controversy would produce a quality debate topic.

Unique Policymaking Education

Since the 2013 National Debate Tournament final round, there has been considerable debate about the importance of our debate topics in producing real-world change. One of the interesting benefits of this topic is that the presidency as an institution is poorly understood by the public. This lack of education is potentially dangerous as an informed and educated citizen is a vital check on presidential powers. As Vanessa Beasley (2010), Associate Professor of Communication at Vanderbilt, notes, the presidency is perhaps the most important yet least understood policymaking institution:

George C. Edwards III...notes that '[the] presidency is perhaps the most important and least understood policymaking institution in the United States.' On one hand, the presidency is important because '[i]t is difficult to discuss any area of national policy without assigning a prominent role to the White House.' On the other hand, the exact nature of this role is complicated by the staggering number

of variables and contingencies at work in every different administration and with respect to multiple policy areas, public needs, and attendant regulatory agencies at levels and locations outside of the White House. (p. 15)

Encouraging college students to debate about presidential war powers is important because critical and balanced education about the presidency is necessary to challenge many of the dangerous policies that this essay discusses. As many legal scholars contend, regardless of the status of legal structures to check the presidency, an important political restraint on the presidency is public opinion (Fisher, 2005; Rudalevig, 2005). As a consequence, we believe that debating about presidential war powers can have important consequences to our lives and serve as an important part of the political restraint against a potential imperial presidency.

Conclusion

Because of the balance and depth of literature to support pro and con core arguments, the controversy's timeliness, clarity of dispute, and unique policymaking opportunities, we believe that the topic of restricting presidential war powers would serve as an excellent debate topic for the college debate community. However, if you are not interested in the relative benefits of this controversy as a debate topic, but instead are interested in the public policy dispute concerning these war powers, we believe that this review offers a broad outline of a number of policy options and their advantages and disadvantages that would aid anyone with interest in war powers issues.

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